

Court No. - 3

Case :- WRIT - C No. - 31463 of 2021

Petitioner :- Ved Prakash

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Madan Kumar Tiwari

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Syed Aftab Husain Rizvi,J.

None appears to press the writ petition. Sri Alok Mishra, learned counsel for the respondent no. 5 and learned Standing Counsel are present.

The case is passed over for the day.

Order Date :- 27.11.2021

Masarrat

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Petitioner :- Ved Prakash

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Madan Kumar Tiwari

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard Shri Madan Kumar Tiwari, learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Alok Mishra, learned counsel for the respondent nos.4 and 5.

Prima facie, from the inquiry report of the Sub-Divisional Officer, it appears that a false case was registered against the petitioner by the then Junior Engineer, Gajraj Singh, and on that basis, the impugned recovery is being pressed.

Considering the facts and circumstances of the case, we direct the respondent nos.4 and 5 to file counter affidavit by means of their personal affidavit within five days from today.

Put up as a fresh case on **30.05.2022**.

Order Date :- 23.5.2022

SK

Court No. - 3

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Madan Kumar Tiwari

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Deepak Verma,J.

Two personal affidavits on behalf of respondent Nos. 4 and 5, both dated 29.05.2022, have been separately filed, today, which are taken on record.

The petitioner may file rejoinder affidavit to the aforesaid two personal affidavits.

Learned counsel for the respondents states that enquiry initiated by the respondent no. 4 shall be concluded within three days and if it is found that any wrong has been committed by the authorities against the petitioner, the same shall be corrected immediately.

Counsel for the respondents prays for adjournment.

As prayed, put up as fresh before the appropriate Bench on 06.07.2022.

Order Date :- 30.5.2022

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Court No. - 3

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Petitioner :- Ved Prakash

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Madan Kumar Tiwari

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent, and Shri Alok Mishra, learned counsel for all the respondent nos.4 and 5.

2. This writ petition has been filed praying for the following relief:

"a. Issue a writ to quash the recovery notice dated 15.1.2018 issued by the respondent No.5 (annexure No. 5 to this writ petition) ."

3. Learned counsel for the respondent nos.4 and 5/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.5 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.5 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 6.7.2022

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